

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

CORY J. BENNETT, Plaintiff,

Civil Action No. 1:26-cv-01601-RP-DH

v.

**THE UNIVERSITY OF TEXAS AT
AUSTIN; EMILY HSIAO; JAMES G.
SCOTT; SALLY K. RAGSDALE; JAY
BARTROFF; KELLI BRADLEY; and
JEFF GRAVES**, Defendants.

**PLAINTIFF’S EMERGENCY MOTION TO MODIFY REFERRAL AND FOR
PROMPT DISPOSITION OF DKT. 3 AND DKTS. 10–12**

Plaintiff Cory J. Bennett respectfully asks Judge Pitman to decide this Motion and modify the referrals of Dkt. 3 and Dkts. 10–12. Plaintiff asks the Court to decide his application to proceed in forma pauperis (“IFP”) and complete review under § 1915(e)(2). The Court can then decide whether process should issue and how service should proceed. Plaintiff requests prompt rulings or a date certain as notice and briefing must occur before the Court can consider a renewed preliminary-injunction motion concerning his Fall 2026 accommodations and enrollment.

Background

Plaintiff’s June 12, 2026 submission included his Complaint and IFP application together with proposed summonses. The Clerk entered the IFP application as Dkt. 3 on June 23. Dkt. 3 and the associated review under 28 U.S.C. § 1915(e)(2) remain pending. Issuance of process awaits those rulings.

Plaintiff’s preliminary-injunction motion was entered as Dkt. 8 on July 1. It sought to place Plaintiff’s Fall 2026 accommodation and enrollment decisions with UT officials who had not participated in the October 2025 restrictions or the later decisions about Plaintiff’s accommodations and enrollment. The motion requested briefing and a decision after service

or other notice accepted under Rule 65(a)(1). The Court’s July 2 text order denied Dkt. 8 for lack of a showing that Defendants had received notice of the motion or lawsuit. Plaintiff sought reconsideration in Dkt. 9. In its July 7 ruling on Dkt. 9, the Court stated that Plaintiff “may refile his Motion for Preliminary Injunction at a later date once notice is given to opposing parties” and may then request a briefing schedule.

Plaintiff pursued the rulings needed for notice through three successive filings.

First, Dkt. 10 requested issuance of the proposed summonses or identification of any remaining step required for issuance. The Clerk entered Dkt. 10 on July 6, and it was referred to Judge Howell on July 7.

Second, Plaintiff executed Dkt. 11 on July 16 after Dkts. 3 and 10 remained unresolved. The Clerk entered Dkt. 11 on July 21. Judge Pitman’s July 22 text order referred Dkt. 11 to Judge Howell “for disposition” under 28 U.S.C. § 636(b)(1)(A) and Rule 72. The order also cited Rule 1(c) of Appendix C to this Court’s Local Rules.

Third, Plaintiff filed Dkt. 12 on August 6 requesting rulings on IFP status and § 1915(e)(2) review. It also asked the Court to identify the claims and Defendants that may proceed and to enter the resulting orders for process and service. Dkt. 12 requested completion within five business days if practicable, with a prompt completion date for any remaining task. The notice of electronic filing states: “Motions referred to Judge Dustin M. Howell.”

The five business days requested in Dkt. 12 ended August 13. Dkt. 3 and its associated § 1915(e)(2) review remain pending, as do Dkts. 10–12. Issuance of process awaits those rulings.

Basis for Relief

Judge Pitman’s November 24, 2025 docket-management order directs referral of an IFP application for disposition. It also requires “a prompt recommendation as to whether the case should be dismissed as frivolous pursuant to 28 U.S.C. § 1915(e).” *In re Court Docket*

Management for Austin Division, Docket Management Order ¶ 2 (W.D. Tex. Nov. 24, 2025). Upon completion of those tasks, the Magistrate Judge must return the case to the District Court for further proceedings. *Id.*

Rule 72 likewise requires a magistrate judge to “promptly conduct the required proceedings” on referred nondispositive and dispositive matters. Fed. R. Civ. P. 72(a), (b)(1). Rule 72’s objection procedures apply after an order or recommendation issues, and neither has issued here. Plaintiff therefore asks Judge Pitman to modify the referrals or direct their prompt completion. Appendix C provides that assignments to magistrate judges are made by court order or a judge’s special designation and that a magistrate judge must conform to the requirements specified in an order of reference. W.D. Tex. App. C, R. 2(a), 3(a).

These pretrial referrals arise under 28 U.S.C. § 636(b). Section 636(b)(1) permits a district judge to designate a magistrate judge to act on specified pretrial matters. The District Court remains responsible for final disposition of matters reserved for an Article III judge. The Fifth Circuit has explained that magistrate judges “support, but cannot supplant, district judges.” Final authority over substantial issues must remain with the district court. *Lawson v. Stephens*, 900 F.3d 715, 716, 719–20 (5th Cir. 2018).

Judge Pitman entered the docket-management and referral orders, so the requested modification falls within § 636(b).

Expedited Consideration

Dkt. 12 identified the steps following § 1915(e)(2) review. After process issues and Defendants receive notice, a renewed preliminary-injunction motion would require briefing and a decision. UT Austin would then need time to implement any order before its Fall registration and add deadlines. Each step depends on disposition of Dkt. 3 and completion of the § 1915(e)(2) review.

UT Austin’s published Fall 2026 calendar sets August 20 registration for readmitted students, with classes beginning August 24. Undergraduate late registration continues

through August 31 and permission-based registration through September 9. University of Texas at Austin, Office of the Registrar, *2026–2027 Academic Calendar; When to Register and Pay, Fall 2026* (last visited Aug. 13, 2026). The later registration periods leave time for administrative action after the ordinary readmission-application cutoff.

Every additional business day before these rulings consumes time needed for summons issuance, service, renewed filing, briefing, decision, and implementation during the remaining Fall 2026 registration and add periods. Continued delay leaves less time to obtain practical relief before Plaintiff can present a renewed preliminary-injunction motion.

Plaintiff’s admission history provides a concrete example of mid-August administrative action. UT Admissions notified Plaintiff on August 13, 2024 that his admission decision had been updated. UT confirmed his Fall 2024 admission the next day. Plaintiff received confirmation of August orientation on August 15. After completing an advising meeting, his advisor stated that registration would occur on August 21. The Registrar then confirmed that Plaintiff had been added to a Fall 2024 course. Bennett Decl. ¶¶ 2–5, Exs. 1-A–1-E. That original transfer admission required new-student orientation and advising before registration. Plaintiff is now a returning senior and does not require incoming-transfer orientation. The 2024 chronology therefore demonstrates that UT completed a more administratively involved admission-and-registration process during the second half of August.

The Fifth Circuit has explained that judicial delay must be evaluated in context as cases require action on different timetables; urgency and repeated date-specific requests inform that analysis. *In re Fort Worth Chamber of Commerce*, 100 F.4th 528, 534–35 (5th Cir. 2024). That case involved a pending preliminary-injunction motion. Here, the unresolved IFP application and § 1915(e)(2) review control when process may issue. Defendants must then receive notice before Plaintiff may renew his preliminary-injunction motion.

The July 7 ruling permits Plaintiff to renew his preliminary-injunction motion only after notice; because the unresolved threshold proceedings presently prevent that notice, Plaintiff cannot yet invoke the renewed preliminary-injunction procedure the Court prescribed.

Further delay shortens the time available for briefing, decision, and implementation altogether.

Requested Relief

Plaintiff respectfully requests the following relief:

- A. Retain this Motion for disposition by Judge Pitman.
- B. Modify the referrals of Dkt. 3 and Dkts. 10–12 for disposition by Judge Pitman.
- C. Decide the IFP application, complete review under § 1915(e)(2), and enter any resulting process and service orders.
- D. Alternatively, leave the referrals in place and direct disposition of Dkts. 3 and 10–12 by August 18, 2026, if practicable. If disposition cannot be completed by then, identify at once any remaining task or submission required from Plaintiff and set the earliest practicable completion date that preserves time for service, an expedited response, a reply, and a ruling during the remaining Fall 2026 registration and add periods.
- E. Grant any further case-management relief needed to permit consideration of a renewed preliminary-injunction motion while UT Austin’s remaining Fall 2026 registration and add procedures remain available.

No Defendant has appeared or has counsel of record, so Plaintiff could not confer before filing.

Respectfully submitted,

Dated: August 14, 2026



Cory J. Bennett, Plaintiff Pro Se
Mailing Address: 6705 W Highway 290
Ste 607 PMB #268
City/State/ZIP: Austin, TX 78735-8407
Telephone: (512) 630-5607
Fax: None
Email: csquaredbennett@gmail.com

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EXHIBIT 1

**DECLARATION OF CORY J. BENNETT
IN SUPPORT OF EMERGENCY MOTION TO MODIFY REFERRAL**

I, Cory J. Bennett, declare as follows:

1. I am the Plaintiff in this action. I have personal knowledge of the facts stated in this declaration and can testify to them if the Court holds a hearing.
2. On August 13 and 14, 2024, UT Austin notified me that my admission decision had been updated and then confirmed my Fall 2024 admission. True and correct copies are attached as Exhibits 1-A and 1-B.
3. On August 15, 2024, UT Austin confirmed my registration for virtual orientation scheduled for August 19 through 21. A true and correct copy is attached as Exhibit 1-C.
4. By August 20, I had completed an orientation advising meeting. My advisor's follow-up email stated that registration would occur on August 21. A true and correct copy is attached as Exhibit 1-D.
5. On August 21, 2024, the UT Registrar confirmed that I had been added to a Fall 2024 course from a waitlist. A true and correct copy is attached as Exhibit 1-E.
6. My Fall 2024 admission was an original transfer admission. The process included new-student orientation and advising before registration. I am now a returning senior and do not require new-student orientation or transfer-student advising before registering. The present readmission process therefore does not require the onboarding steps that preceded my Fall 2024 registration.

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct.

Executed on August 14, 2026, in Austin, Texas.



Cory J. Bennett



C&C Bennett <csquaredbennett@gmail.com>

Decision Update

3 messages

Sandra Sanchez <sandra.sanchez@austin.utexas.edu>
To: csquaredbennett@gmail.com

Tue, Aug 13, 2024 at 1:46 PM

Hello,

An update has been made regarding your admission decision. Please log into your MyStatus portal at your earliest convenience.

Kind Regards,

Sandra Sanchez, Admissions Counselor

The University of Texas at Austin | Office of Admissions | admissions.utexas.edu

C&C Bennett <csquaredbennett@gmail.com>
To: Sandra Sanchez <sandra.sanchez@austin.utexas.edu>

Tue, Aug 13, 2024 at 3:39 PM

Hi,

Thank you! I saw that I was accepted into the Mathematics program at UT Austin, though I'm wondering how I should go about starting the enrollment process and submitting documents so soon before the semester starts.

I also don't see anything on MyStatus about accepting admission or paying an enrollment deposit. Is there a different place I should be looking or a way I can do this in-person at a cashier's office?

Cory Bennett

[Quoted text hidden]

Sanchez, Sandra <sandra.sanchez@austin.utexas.edu>
To: C&C Bennett <csquaredbennett@gmail.com>

Fri, Aug 16, 2024 at 10:38 AM

Hello,

I apologize for the late response.

We received your enrollment deposit. Please visit your MyStatus portal to view items that may need to be completed if you haven't done so already. For more information on your next steps, I encourage you to reach out to our [New Student Services Office](#).

Please let me know if you have any further questions.

Hook 'em!

Kind Regards,

Sandra Sanchez, Admissions Counselor

The University of Texas at Austin | Office of Admissions | (512) 695-7218 | admissions.utexas.edu

From: C&C Bennett <csquaredbennett@gmail.com>
Sent: Tuesday, August 13, 2024 3:39 PM
To: Sanchez, Sandra <sandra.sanchez@austin.utexas.edu>
Subject: Re: Decision Update

[Quoted text hidden]



C&C Bennett <csquaredbennett@gmail.com>

🤘 It's official! 🤘

1 message

The University of Texas at Austin <reply@austin.utexas.edu>
Reply-To: transferadmissions@austin.utexas.edu
To: csquaredbennett@gmail.com

Wed, Aug 14, 2024 at 2:02 PM



You're a Longhorn!

Dear Cory,

Congratulations on your admission to The University of Texas at Austin! I'm thrilled to welcome you to our **Longhorn** family.

Your official acceptance packet is on its way to you, but we didn't want to wait for its arrival to celebrate your achievements as a student and member of your community. Share your excitement on social media with a post, and don't forget to tag us **@BeALonghorn**.

You have the world-changing ambition, imagination and willingness to work hard that all **Longhorns** share, and we can't wait for you to join us on the Forty Acres in the fall!

Hook 'em,



Miguel V. Wasielewski, Ph.D.
Vice Provost of Admissions
The University of Texas at Austin



The University of Texas at Austin
Office of Admissions



The University of Texas at Austin

Office of Admissions

P.O. Box 300609

Austin, Texas 78703

[Call the UT Austin Office of Admissions 512-475-7399](tel:512-475-7399)

This email was sent to csquaredbennett@gmail.com by The University of Texas at Austin.
[Unsubscribe](#) from The University of Texas at Austin.



C&C Bennett <csquaredbennett@gmail.com>

VIRTUAL New Student Orientation 2024 Confirmation Notification

2 messages

nss@austin.utexas.edu <nss@austin.utexas.edu>
To: CSQUARED BENNETT@gmail.com

Thu, Aug 15, 2024 at 9:39 PM

August 15, 2024

Cory J Bennett

Dear Cory:

Thank you for registering for orientation at The University of Texas at Austin! This email is to confirm your registration for VIRTUAL New Student Orientation 2024 starting on Monday, August 19, 2024 through Wednesday, August 21, 2024. Visit <https://newstudentservices.utexas.edu/transfer> to review your VIRTUAL orientation schedule and for other critical information about your session.

Be sure that you are available for the entirety of your orientation session to participate in required sessions such as your college meeting, academic advising, and course registration.

You can view your orientation registration status here: <https://utdirect.utexas.edu/apps/dos/orientation/student/confirmation/>.

VIRTUAL ATTENDANCE

You will be able to locate virtual meeting links and other information on the Canvas orientation page on the first morning of orientation beginning at 8 a.m. CT. Please note, your Canvas orientation page will not become available until 10 calendar days prior to the start of your session. You will receive an email from New Student Services letting you know when it is available.

PAYMENT

Your orientation charge has been automatically deferred and payment is not due at this time. Please note that deferment means the balance is due at a later date, and the balance will show on your 'What I Owe' account until your financial aid award is disbursed or you complete payment. If you receive financial aid, your payment will be deducted from your award when financial aid is released at the start of the term. Please be aware that your financial aid may not cover the entire orientation cost. If not, you will need to pay any remaining balance by the first day of classes (Monday, August 26, 2024).

Although your payment has been deferred, you also have the option to pay your orientation bill. Visit your orientation status page at <https://utdirect.utexas.edu/apps/dos/orientation/student/confirmation/> to complete payment.

CANCELLATION AND REFUND POLICY

Registration for August Orientation cannot be canceled, and no refunds will be granted.

If you register to attend a June or July orientation session and fail to attend (no show), the fees are non-refundable and can only be transferred to an August Orientation session. You must register to attend August Orientation if you do not attend orientation in June or July. There are no cancellations or refunds for August Orientation. All students, including those with a deferred charge, are responsible for any outstanding orientation charges.

NEXT STEPS

Follow us on social media

You can find @UTOrientation on Instagram, X and Facebook for all things UT Orientation. Join the official UT Austin Transfer Student Facebook group to connect with your fellow Longhorns.
<https://www.facebook.com/groups/UTAustinTransferStudents>

More information will be shared as your orientation date approaches and updates can be found on our website (<https://newstudentservices.utexas.edu>). For further questions, please refer to the New Student Orientation FAQ page: <https://newstudentservices.utexas.edu/orientation/orientation-FAQ>.

We are excited to host you at VIRTUAL New Student Orientation 2024!

CSQUAREDBENNETT@GMAIL.COM

C&C Bennett <csquaredbennett@gmail.com>
To: "cory.bennett@utexas.edu" <cory.bennett@utexas.edu>

Thu, Aug 15, 2024 at 9:42 PM

[Quoted text hidden]



C&C Bennett <csquaredbennett@gmail.com>

Orientation Advising Meeting Follow-up

1 message

Rutkowski, Aaron <ski@austin.utexas.edu>

Tue, Aug 20, 2024 at 10:02 AM

To: "CSQUAREDBENNETT@GMAIL.COM" <CSQUAREDBENNETT@gmail.com>

Hello,

It was great meeting with you for your orientation advising meeting! Attached is the worksheet we completed together. This email contains important info and reminders about registration. Please read everything carefully.

General Reminders:

- Register for your TrIG/TxT first
- Have backups ready for your non-cluster courses
- Register for at least 12 hours total to be a full-time student
- Registration is this Wednesday at 1pm. Stop by on Zoom from 1-2pm for registration support from an advisor:
<https://utexas.zoom.us/j/91907686343>
- CNS Core Course List (if applicable):
 - <https://ugs.utexas.edu/core-curriculum/requirements/current>
 - These are classes that will count towards the UT Core Curriculum requirements
 - Avoid taking a core course in an area of the Core Curriculum that you may have already completed through AP, IB, or transferred-in dual credit.
- Post Registration:
 - If taking CH 301 in the fall, don't forget to complete the [Chemistry Assessment](#)
 - The CH assessment is time consuming; we encourage you to start it as soon as possible
 - If you are retaking the [UTMA](#) make sure you set aside time to review the [Math Readiness Package](#)
 - As a reminder you have a total of 2 attempts per semester to meet the required UTMA score
- **MAKE SURE TO REVIEW THE FOLLOWING:**
 - [College of Natural Sciences Resources](#)
 - [Video on Understanding the Course Schedule](#)
 - [Video on How to Register for Classes](#)
- Follow @CNS_Advising on [Instagram](#) and [Twitter](#)

Additionally, We have several CNS OAs who will be available tomorrow from 1 to 5 PM at the following Zoom link:

<https://utexas.zoom.us/j/91907686343>

The OAs will be available for drop-in advising for first-year students who have been advised but want to talk further about registration and building a schedule. Please feel free to give the link to first-year students you may have seen today or will see tomorrow.

-

Take care and have a great day!

Respectfully,

Aaron Rutkowski (he/him/his) U.S. Army, Retired

Transfer Academic Advisor (CELA) College of Natural Sciences

The University of Texas at Austin Office: WCH 1.106 | ski@austin.utexas.edu

Day(s) out of office: Friday

Students, please include your EID with your email!



A climate conducive to learning and creating knowledge is the right of every person in our community.

cns.utexas.edu/diversity

Follow CNS Advising: [Twitter](#) & [Instagram](#)



cjb5497.pdf
122K



C&C Bennett <csquaredbennett@gmail.com>

UT Registrar: fall 24 waitlist update

2 messages

sis-wait-lists@utlists.utexas.edu <sis-wait-lists@utlists.utexas.edu>
To: CSQUAREDBENNETT@gmail.com

Wed, Aug 21, 2024 at 4:18 PM

Congratulations, waiting for classes paid off! You were added into a course off of the waitlist. Please check your class listing at <https://utdirect.utexas.edu/registration/classlist.WBX> to see your new class schedule.

If you are on a waitlist for another section of this course and no longer want it, remove yourself from that section's waitlist.

Sincerely,
UT Registrar
THIS IS AN AUTOMATED EMAIL MESSAGE. DO NOT REPLY!

sis-wait-lists@utlists.utexas.edu <sis-wait-lists@utlists.utexas.edu>
To: CSQUAREDBENNETT@gmail.com

Thu, Aug 22, 2024 at 12:41 AM

[Quoted text hidden]